

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

WAY2Go CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

**DOCKET NO. 25-14**

Served: February 11, 2026

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**ORDER OF:** Richard AMBROW, *Administrative Law Judge*.

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**ORDER GRANTING IN PART AND DENYING IN PART COMPLAINANT’S MOTION TO COMPEL  
DEPOSITION OF RESPONDENT’S CORPORATE REPRESENTATIVE, AND DENYING WITHOUT  
PREJUDICE RESPONDENT’S CROSS-MOTION FOR PROTECTIVE ORDER**

Complainant’s Motion to Compel Deposition of Respondent’s Corporate Representative (“MTC”) is **GRANTED IN PART** to the extent it seeks an order requiring Respondent to produce a corporate representative for a deposition. The MTC is **DENIED IN PART** to the extent Complainant seeks expenses incurred in bringing the MTC, including attorney’s fees.

Respondent’s Cross-Motion for Protective Order (“MPO”) is **DENIED WITHOUT PREJUDICE**.

The parties are encouraged to agree to limit the scope of the deposition topics for Respondent’s corporate representative. The parties are also encouraged to stipulate to the confidential treatment of discovery material or file a joint motion for a protective order.

**A. BACKGROUND**

On July 25, 2025, Complainant Way2Go Cargo Corp. (“Complainant” or “W2G”) filed a complaint naming Oak Way Cargo, LLC (“Respondent” or “Oak Way”) and alleging that Respondent is operating as an ocean transportation intermediary (“OTI”) without a license from the Commission in violation of 46 U.S.C. § 40901(a).

On August 25, 2025, Respondent filed an unsuccessful motion to dismiss. (*See* Respondents’ Motion to Dismiss Complainant’s Complaint (“MTD”)). In it, Respondent noted that these parties have been involved in several lawsuits in both state and U.S. District Court in Florida. (MTD, at 2; *see also* Respondent’s Reply in Support of Motion to Dismiss Complainant’s Complaint, at 2). Respondent filed an answer and affirmative defenses on September 29, 2025.

I issued a Scheduling Order on November 20, 2025, with a fact discovery cut-off of February 5, 2026. The parties jointly moved to extend discovery cut-off until March 9, 2026, which I granted. (*See* Order Granting Joint Motion to Extend Scheduling Order Deadlines).

Complainant filed its MTC on January 27, 2025. Respondent responded to the MTC by filing its MPO on February 2, 2026. Complainant responded to the MPO on February 10, 2026.<sup>1</sup>

## **B. MTC**

Complainant's MTC seeks to compel the deposition of Respondent's corporate representative. Complainant asserts that Respondent will not agree to allow Respondent's corporate representative to be deposed, as Complainant had the opportunity to examine Respondent's corporate representative in the related U.S. District Court action. (MTC, at 1-2). Complainant explains it brought an action in the U.S. District Court for the Southern District of Florida for a preliminary injunction under 46 U.S.C. § 41306(a), related to Respondent's alleged violation of section 40901(a). (MTC, at 2). A U.S. magistrate judge held an evidentiary hearing over the course of four days in October 2025, wherein Respondent's principal, Mr. Alves, was examined. (*Id.*).

Complainant attaches two exhibits to its MTC. The first is an email exchange between counsel for the parties, where counsel for W2G asks availability to take the deposition of Respondent's corporate representative on several dates in late January and early February. (MTC, Ex. A). The second is a list of 50 deposition topics for the corporate representative. (MTC, Ex. B). In its response to the MPO, W2G asserts it noticed the deposition of Oak Way's corporate representative for February 4, 2026, but that Oak Way's witness did not appear. (MPO Opp., at 2). Complainant issued the deposition notice after it filed the MTC. (*Id.*).

Respondent advances two arguments in response to the MTC. First, the MTC is premature because the notice of deposition was issued after the MTC was filed. (MPO, at 1-2). Second, Respondent's principle was extensively examined during the hearing in the U.S. District Court action; Respondent attaches a lengthy transcript of the testimony. (MPO, at 3-4; *see also* MPO, Ex. A).

Respondent's arguments are not persuasive. I appreciate that the MTC was filed before the deposition was noticed. Nevertheless, the record shows that Complainant's counsel proposed dates and asked to depose Respondent's corporate representative, and that Respondent's counsel refused to produce a witness. There is no question this issue is ripe.

Regarding Respondent's assertion that its corporate representative has already been examined, I understand that the U.S. District Court action is closely related to this action. In the

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<sup>1</sup> Complainant's response to the MPO also asserts that it is a reply in support of its MTC. (*See generally* Complainant's Response in Opposition to Respondent's Cross-Motion for Protective Order and Reply in Support of its Motion to Compel ("MPO Opp.")). Replies to non-dispositive motions are not allowed without approval of the Commission or presiding officer upon a showing of extraordinary circumstances. (46 C.F.R. § 502.71(c)). Therefore, I will disregard the MPO Opp. to the extent it serves as a reply.

U.S. District Court case, W2G seeks a preliminary injunction based on the same alleged violation of section 40901(a), and the same general conduct that is at issue in the present matter. Nevertheless, as a general matter, courts are generally reluctant to issue protective orders that would completely prohibit the taking of a deposition. (*United States v. Kellogg Brown & Root Servs., Inc.*, 285 F.R.D. 133, 135 (D.D.C. 2012)). Moreover, although this matter is closely related to the U.S. District Court matter, the witness will not necessarily be testifying in the same capacity. Here, Complainant asks to depose a corporate representative. A corporate representative's testimony is not limited to his or her personal knowledge, but the corporate representative must "testify about information known or reasonably available to the organization." (46 C.F.R. § 502.143(b)(6); *see also Bigsby v. Barclays Capital Real Estate, Inc.*, 329 F.R.D. 78, 81 (S.D.N.Y. 2019) (citations omitted) ("The organization 'must prepare the designee to the extent matters are reasonably available, whether from documents, past employees, or other sources.'"); *Prasad v. George Washington Univ.*, 325 F.R.D. 1, 6 (D.D.C. 2018) ("Rule 30(b)(6) requires an organization to identify a person knowledgeable on a noticed topic and to prepare that person to testify as to that topic, thus binding the entity[.]"). Assuming Mr. Alves would be designated as Oak Way's corporate representative, the record does not disclose that he previously testified as a corporate representative. (*See generally* MPO, Ex. A). Thus, even if Mr. Alves is the designated as Oak Way's corporate representative, the scope of the deposition was likely different than it would have been during a hearing related to a preliminary injunction.

For these reasons, the MTC is **GRANTED IN PART** to the extent Complainant seeks an order requiring Respondent to produce a corporate representative for a deposition.

Respondent is **ORDERED** to present a corporate representative for deposition.

Complainant also seeks expenses incurred in filing the MTC, including attorney's fees, under Rule 37(a)(5) of the Federal Rules of Civil Procedure. (MTC, at 3). The Commission's Rule regarding motions to compel discovery does not include a similar provision to Rule 37(a)(5). (46 C.F.R. § 502.150). Assuming that Rule 37(a)(5) is applicable here (*see* 46 C.F.R. § 502.12), an award of expenses, including attorney's fees, may be denied if the opposing party's objections are substantially justified. (FED. R. CIV. P. 37(a)(5)(A)(i)). "Substantially justified means that reasonable people could differ as to the appropriateness of the contested action." (*Maddow v. Proctor & Gamble Co., Inc.*, 107 F.3d 846, 853 (11th Cir. 1997) (*citing Pierce v. Underwood*, 487 U.S. 552, 565 (1988))). I do not think an award of expenses is warranted here. I find Respondent's position to be substantially justified, even if not persuasive – Respondent could fairly challenge the appropriateness of the deposition at issue given that Mr. Alves was subject to examination by Complainant in a closely related action. Therefore, the MTC is **DENIED IN PART** to the extent Complainant asks for expenses, including attorney's fees.

### C. MPO

Respondent moves for a protective order to limit the scope of topics for examination. Complainant apparently revised 13 of the 50 deposition topics while the MTC and MPO were being briefed. (MPO, at 2, n.1; *see also* MPO Opp., at 3). The parties, however, have not disclosed to me any areas of agreement, nor is it clear what remains in dispute. Rather than issue

an order regarding a topic that may now be moot, or where Respondent does not object, it would be better for the parties to narrow the scope of their dispute before I issue any ruling.

Respondent also asserts that Complainant seeks discovery of confidential materials. The Initial Order in this case provides that the parties may stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. (*See* Initial Order, at ¶ 31). The parties may also file a joint motion for an agreed-to protective order that is consistent with the Commission's rules and the Initial Order. Therefore, it would be best for the parties to agree to confidential treatment of certain information.<sup>2</sup>

Accordingly, the MPO is **DENIED WITHOUT PREJUDICE**. Respondent may re-file a motion for protective order if necessary. The parties are strongly encouraged to work collaboratively to reduce the scope of the deposition of Respondent's corporate representative. In particular, the parties are to be mindful of the scope of discovery – they may take discovery of nonprivileged material that is relevant to any claim or defense. (46 C.F.R. § 502.141(e)(1)). It is not an opportunity to take discovery related to other actions between the parties. Some of the topics, for example, specifically refer to testimony or orders from the U.S. District Court action, and do not appear to be relevant to the issue here, *i.e.*, whether Respondent operates as an OTI. Many of the topics, however, appear to be appropriate. Moreover, W2G can seek information related to whether Oak Way is acting in violation of section 40901(a) presently. The parties are encouraged to work professionally to resolve the remaining procedural issues with minimal intervention, and to minimize the cost of litigation.

#### **D. CONCLUSION**

It is **ORDERED** that Complainant's Motion to Compel Deposition of Respondent's Corporate Representative is **GRANTED IN PART** to the extent it seeks an order requiring Respondent to produce a corporate representative for a deposition. It is

**FURTHER ORDERED** that the MTC is **DENIED IN PART** to the extent it seeks expenses incurred in bringing the MTC, including attorney's fees. It is

**FURTHER ORDERED** that Respondent will produce a corporate representative for a deposition. It is

**FURTHER ORDERED** that Respondent's Cross-Motion for Protective Order is **DENIED WITHOUT PREJUDICE**.

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<sup>2</sup> The Commission's Rules indicate that personal identifying information, such as Social Security numbers, should be treated as confidential. (*See* 46 C.F.R. § 502.12). In addition, trade secrets, confidential research, development or commercial information may be treated as confidential. (*See* 46 C.F.R. § 502.141(j)(1)(vii)).

The parties are encouraged to agree to limit the scope of the deposition topics for Respondent's corporate representative. The parties are also encouraged to stipulate to the confidential treatment of discovery material, or file a joint motion for a protective order.

Richard C.  
Ambrow Jr -S



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Richard Ambrow  
Administrative Law Judge